

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: 299,193 NAME: Daniel "Sparky" Abraham FIRM NAME: Jubilee Legal STREET ADDRESS: 300 E. Esplanade Dr. Suite 900 CITY: Oxnard STATE: CA ZIP CODE: 93036 TELEPHONE NO.: 805-946-0386 FAX NO.: 805-620-7834 E-MAIL ADDRESS: sparky@jubilee.legal ATTORNEY FOR (name): Dalton C. Gaudin	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 5/16/2024 11:33 AM David W. Slayton, Executive Officer/Clerk of Court, By T. Salgado, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Ave. MAILING ADDRESS: 9425 Penfield Ave. CITY AND ZIP CODE: Chatsworth, CA 91311 BRANCH NAME: Chatsworth Courthouse	CASE NUMBER: 24CHLC00778
Plaintiff/Petitioner: Student Loan Solutions LLC Defendant/Respondent: Dalton C. Gaudin, et al.	JUDICIAL OFFICER: Hon. Brock Hammond
PROOF OF SERVICE—CIVIL Check method of service (only one): ☐ By Personal Service ☒ By Mail ☐ By Overnight Delivery ☐ By Messenger Service ☐ By Fax	DEPARTMENT: F41

Do not use this form to show service of a summons and complaint or for electronic service.

See USE OF THIS FORM on page 3.

1. At the time of service I was over 18 years of age **and not a party to this action.**
2. My residence or business address is:
300 E. Esplanade Dr., Suite 900, Oxnard, CA 93036
3. ☐ The fax number from which I served the documents is *(complete if service was by fax)*:
4. On *(date)*: 5/16/2024 I served the following **documents** *(specify)*:

☒ The documents are listed in the *Attachment to Proof of Service—Civil (Documents Served)* (form POS-040(D)).

5. I served the documents on the **person or persons** below, as follows:

a. Name of person served: Stephen Goldsmith, counsel for Student Loan Solutions LLC

b. ☒ *(Complete if service was by personal service, mail, overnight delivery, or messenger service.)*

Business or residential address where person was served:

Goldsmith & Hull, A.P.C., 16933 Parthenia St., Suite 110, Northridge, CA 91343

c. ☐ *(Complete if service was by fax.)*

Fax number where person was served:

☐ The names, addresses, and other applicable information about persons served is on the *Attachment to Proof of Service—Civil (Persons Served)* (form POS-040(P)).

6. The documents were served by the following means *(specify)*:

a. ☐ **By personal service.** I personally delivered the documents to the persons at the addresses listed in item 5. (1) For a party represented by an attorney, delivery was made (a) to the attorney personally; or (b) by leaving the documents at the attorney's office, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office; or (c) if there was no person in the office with whom the notice or papers could be left, by leaving them in a conspicuous place in the office between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and eight in the evening.

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6. b. ☒ **By United States mail.** I enclosed the documents in a sealed envelope or package addressed to the persons at the addresses in item 5 and (*specify one*):
- (1) ☒ deposited the sealed envelope with the United States Postal Service, with the postage fully prepaid.
- (2) ☐ placed the envelope for collection and mailing, following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service, in a sealed envelope with postage fully prepaid.
- I am a resident or employed in the county where the mailing occurred. The envelope or package was placed in the mail at (*city and state*): Oxnard, CA
- c. ☐ **By overnight delivery.** I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the persons at the addresses in item 5. I placed the envelope or package for collection and overnight delivery at an office or a regularly utilized drop box of the overnight delivery carrier.
- d. ☐ **By messenger service.** I served the documents by placing them in an envelope or package addressed to the persons at the addresses listed in item 5 and providing them to a professional messenger service for service. (*A declaration by the messenger must accompany this Proof of Service or be contained in the Declaration of Messenger below.*)
- e. ☐ **By fax transmission.** Based on an agreement of the parties to accept service by fax transmission, I faxed the documents to the persons at the fax numbers listed in item 5. No error was reported by the fax machine that I used. A copy of the record of the fax transmission, which I printed out, is attached.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 5/16/2024

Daniel "Sparky" Abraham

(TYPE OR PRINT NAME OF DECLARANT)



(SIGNATURE OF DECLARANT)

(If item 6d above is checked, the declaration below must be completed or a separate declaration from a messenger must be attached.)

DECLARATION OF MESSENGER

- ☐ **By personal service.** I personally delivered the envelope or package received from the declarant above to the persons at the addresses listed in item 5. (1) For a party represented by an attorney, delivery was made (a) to the attorney personally; or (b) by leaving the documents at the attorney's office, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office; or (c) if there was no person in the office with whom the notice or papers could be left, by leaving them in a conspicuous place in the office between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and eight in the evening.

At the time of service, I was over 18 years of age. I am not a party to the above-referenced legal proceeding.

I served the envelope or package, as stated above, on (*date*):

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(NAME OF DECLARANT)



(SIGNATURE OF DECLARANT)

SHORT TITLE: Student Loan Solutions LLC v. Dalton C Gaudin et al.

CASE NUMBER:
24CHLC00778**ATTACHMENT TO PROOF OF SERVICE—CIVIL (DOCUMENTS SERVED)***(This Attachment is for use with form POS-040)***The documents that were served are as follows *(describe each document specifically)*:**

NOTICE OF CONTINUANCE OF HEARING ON DEMURRER OF DALTON C GAUDIN TO THE COMPLAINT OF STUDENT LOAN SOLUTIONS LLC

NOTICE OF DEMURRER AND DEMURRER OF DALTON C GAUDIN TO THE COMPLAINT OF STUDENT LOAN SOLUTIONS LLC

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEMURRER OF DALTON C GAUDIN TO THE COMPLAINT OF STUDENT LOAN SOLUTIONS LLC

DECLARATION OF DANIEL "SPARKY" ABRAHAM IN SUPPORT OF DEFENDANT DALTON C GAUDIN'S DEMURRER TO PLAINTIFF'S COMPLAINT

DEFENDANT DALTON C GAUDIN'S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEMURRER TO PLAINTIFF'S COMPLAINT

[PROPOSED] ORDER